



Authority Support Required

1 assets are awaiting your Letters Testamentary to finalize ownership. These assets require probate authority to complete the transfer process.

[FINALIZE DOCUMENTS](#)[View Asset List →](#)

Strategic Assessment

Secure, Notify, Preserve • Immediately After Death

Court Compliance & Eligibility

Eligibility, Venue, Parties • Before Court Filing

Petition & Authority

Independent Admin or Muniment of Title • County/Statutory Probate Court Filing

Asset Discovery

Inventory & Valuation • After Authority Issued

Creditor Claims

Secured & Unsecured Claims (Optional for Muniment) • After Letters Issued

Asset Liquidation

Transfers & Sales (If Needed) • After Inventory Prepared

Final Distribution

Accounting, Distribution, Close • After Claims & Taxes Addressed



Strategic Assessment CURRENT



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Preliminary Asset & Liability Scan NEXT STEP

Identify known bank accounts, real estate, and major debts. This data is critical for estimating estate value on the petition and determining bond requirements.



Secure the Property

Change locks, forward mail, and ensure the home is protected from theft or damage.

Upload Photos



Identify Minor Beneficiaries OPTIONAL

Review all heirs and identify any beneficiaries under age 18. Minors require special court protection through a guardian ad litem.

Protect Minors



Evaluate Primary Residence Succession OPTIONAL

If the estate consists primarily of a primary residence valued under the state's simplified threshold, you may qualify for a simplified succession process.

Check Eligibility



Initial Property Protection

Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.



Notify Social Security Administration

Report the death to stop benefit payments and prevent overpayment recovery.

✔ Death Certificate Obtained



Report Death to SSA



Cancel Credit Cards & Subscriptions

Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts**Manage Utilities**

Review decedent's utility accounts (electricity, water, gas).

**Conduct Genealogical Search** **OPTIONAL**

If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribution decree.

**Locate Important Documents (Intestate)** **OPTIONAL**

Since there is no Will, search for insurance policies, real estate deeds, and final account statements to inventory the estate.

Upload Documents**Establish Estate Financial Account**

Open a separate fiduciary account for estate income and expenses once legal authority is obtained.

Death Certificate Obtained



Upload Letters of Authority

Upload EIN

**Managed Payment of Immediate Bills**

Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

Track Bills**Obtain EIN for the Estate**

Apply for an Employer Identification Number from the IRS. This unique ID is required to open an estate bank account and for all tax filings.

Upload IRS Form SS-4

Apply for EIN Online (IRS)

**File IRS Form 56 (Notice of Fiduciary)**

Formally notify the IRS that you have taken on the role of Executor/Administrator. This ensures that all tax correspondence regarding the decedent is sent to you.

Upload IRS Form 56

Upload Certified Letters of Authority

 Download IRS Form 56

☐ Locate Trust Document & All Amendments

Find the original signed trust document and any amendments. This is your primary legal authority.

 Upload Original Trust Document Upload All Amendments

☐ Confirm Successor Trustee Designation

Verify your appointment as successor trustee per the trust terms.

☐ Sign Trustee Acceptance / Affidavit

Formally accept your role as successor trustee by signing an acceptance document.

 Upload Trustee Acceptance Form

☐ Prepare Certification of Trust

Create a Certification of Trust (abstract of trust) to prove your authority to banks and institutions without revealing full trust terms.

 Death Certificate Obtained Upload Certification of Trust

☐ Obtain EIN for Trust/Estate

Apply for an Employer Identification Number from the IRS. Required for opening trust bank accounts and filing tax returns.

 Upload IRS Form SS-4 Apply for EIN Online

☐ File IRS Form 56

Formally notify the IRS of your fiduciary relationship as successor trustee. This ensures tax notices are sent to you directly.

 Upload IRS Form 56

**Secure Trust Property**

Change locks on real property, forward mail, secure valuables, and ensure insurance coverage remains active.

**Issue Certificate of Trust**

Prepare and notarize a Certificate of Trust to present successor trustee authority to banks.

**UPLOAD MISCELLANEOUS****Court Compliance & Eligibility**

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**Validate Venue and Jurisdiction**

Confirm the decedent's legal domicile and county residency to ensure the petition is filed in the legally appropriate court.

**Screen Fiduciary Eligibility**

Verify that the proposed executor or administrator meets all state-specific legal requirements to serve.

**Validate Interested Parties**

Identify all individuals legally entitled to notice or inheritance, including heirs-at-law, beneficiaries, and devisees.

**Compile Will and Testamentary Proofs**

Gather the original valid will, codicils, and secure witness affidavits or self-proving attestations.

**Identify Protected Persons representation**

Screen the interested party list for minors, incapacitated adults, or unknown heirs that require a court-appointed Guardian ad Litem (GAL).



Prepare Required Notices and Waivers

Generate the formal notice plan to serve interested parties, or gather Signed Waivers and Consents to expedite the process.



Evaluate Need for Temporary Authority

Determine if preliminary letters or special administration is necessary to protect assets or run a business while formal probate is pending.



Calculate Court Filing Fees

Determine the exact statutory filing fee based on the estimated gross value of the probate estate.



Compile Required Court Form Packet

Synthesize the official local forms and procedural filing notes required by your specific court into a ready-to-file package.



File Petition for Guardian Ad Litem

OPTIONAL

LOCKED

Request court appointment of a guardian ad litem to represent minor beneficiaries' interests throughout probate.



Death Certificate Obtained



Obtain Guardian Ad Litem Order

OPTIONAL

LOCKED

Receive court order appointing guardian ad litem. Provide guardian with all estate information.



UPLOAD MISCELLANEOUS



Petition & Authority

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1ASSET



File Application to Probate Will as Muniment of Title

For TX estates with a valid will and no unpaid debts (other than secured debts on real property), Muniment of Title allows the will to be admitted to probate without appointing an executor.

 **Death Certificate Obtained** Upload Original Will Upload Application Form TX Estates Code §257**Verify Muniment of Title Eligibility**

Before filing for Muniment of Title, verify the estate meets all requirements: valid will, no unsecured debts, no Medicaid recovery claims, and no need for estate administration.

 Upload Will Review Upload Debt Inventory Upload Medicaid Status Check TX Estates Code §257.001**File Application for Dependent Administration**

For TX intestate estates or when Independent Administration is not available, file for Dependent Administration which requires court supervision for most actions.

 **Death Certificate Obtained** Upload Heirship Information Upload Application Form TX Estates Code §359**Determine TX Administration Type**

Texas requires choosing between Independent Administration (preferred, less court oversight), Dependent Administration (court-supervised), or Muniment of Title (no executor). The choice depends on will terms, debts, and heir cooperation.

**Post Application at Courthouse (10-Day Gate)**

Texas requires the probate application to be posted at the courthouse for 10 days before the hearing can occur. This gives interested parties notice of the proceeding.

 Upload Posted Application Notice TX Estates Code §54.001**File Proceeding to Determine Heirship**

For TX intestate estates where heirs are unknown, missing, or their shares are disputed, file a proceeding to determine heirship. This requires a court-appointed attorney ad litem to represent unknown heirs.

 **Death Certificate Obtained** Upload Family Tree Affidavit Upload Genealogical Research TX Estates Code §202

**Assert Texas Homestead Protections**

Texas homestead property is protected from most creditor claims and passes directly to surviving spouse and/or minor children. Assert these protections to preserve the family home.



Upload Property Deed



Upload Homestead Affidavit



TX Estates Code §102



TX Constitution Art. XVI, §51

**Claim Texas Exempt Property Allowances**

Texas provides exempt property allowances including homestead, personal property exemptions up to \$100,000 (family) or \$50,000 (single), and family allowances for support during administration.



Upload Exempt Property Inventory



Upload Family Allowance Request



TX Estates Code §353

**File Small Estate Affidavit (TX §205)**

For TX estates under \$75,000 with no real property (other than homestead), file a Small Estate Affidavit to collect assets without formal probate. All distributees must sign.



Death Certificate Obtained



Upload Small Estate Affidavit



Upload Asset Information



TX Estates Code §205

**Determine TX Bond Requirement**

Texas generally does not require bond for Independent Administration if the will waives it (standard). Bond may be required for Dependent Administration or if will explicitly demands it.



Upload Will Review (bond clause)



Upload Heir Consent Forms (if applicable)



TX Estates Code §401

**Calculate TX Court Filing Fees**

Texas probate filing fees vary by county. Calculate fees based on estate type (Muniment, Independent, Dependent) and county fee schedule.

**Obtain and Serve TX Citation**

Texas requires citation to be issued and served on all distributees and named beneficiaries. Personal service is required unless waived by signed waiver.

 Upload Citation Upload Proof of Service Upload Waivers (if any) TX Estates Code §51**File Petition for Probate**

Submit the probate petition and original Will to the court to open the estate case and request appointment as Executor.

 **Death Certificate Obtained** Upload Original Will Upload Petition Form**File Petition for Administration**

Submit the administration petition to the court to open the estate case and request appointment as Administrator (since there is no Will).

 **Death Certificate Obtained** Upload Petition Form**Pay Court Filing Fee** LOCKED

Pay the required court filing fee to process the petition. Fees vary by estate value.

**Submit Oath and Designation** LOCKED

Sign and submit the Oath and Designation form, officially agreeing to serve as the fiduciary.

**Obtain Citation from Court** LOCKED

Receive the issued Citation from the court, which sets the hearing date and commands interested parties to appear.

**Serve Citation on Interested Parties** LOCKED

Serve the Citation to all required heirs and interested parties according to strict statutory rules.

**Attend Probate Hearing** LOCKED

Appear in court for the probate hearing (typically 30–60 days after filing) to confirm the Will and your appointment.

**Attend Administration Hearing**

LOCKED

Appear in court for the administration hearing. Since there is no Will, the court will confirm heirs and appointing you as Administrator.

**Obtain Letters Testamentary**

LOCKED

Once the Will is admitted to probate, obtain certified copies of your Letters Testamentary.

**Obtain Letters of Administration**

LOCKED

Once the court approves the petition, obtain certified copies of your Letters of Administration.

**File Small Estate Affidavit**

For estates under threshold, use this shortcut to bypass court probate.

Death Certificate Obtained



Upload Affidavit Form

**File Spousal Property Petition**

Request court order to transfer property to surviving spouse without full probate.

Death Certificate Obtained



Upload Petition Form

Start Spousal Path

**Give Notice of Hearing**

OPTIONAL

LOCKED

Notify all interested parties about the court hearing date for the petition.

**Obtain Spousal Property Order**

OPTIONAL

LOCKED

Receive signed court order confirming property ownership transfer to spouse. Record with county recorder if real estate is involved.

**Issue Certificate of Trust**

OPTIONAL

Formalize successor trustee authority for trust-held assets.



Upload Trust Agreement

**Obtain Business Operating Authority**

If the decedent owned a business, you may need a court order to continue operations and pay employees.

☐ **File Petition to Determine Succession** OPTIONAL

File petition with court to determine who inherits the primary residence without full probate.

 **Death Certificate Obtained**



 **Upload Petition Form**

 **Upload Property Deed**

 **About Succession Petitions**

Start Succession

☐ **Give Notice of Hearing** OPTIONAL LOCKED

Notify all interested parties of the hearing date for the succession petition.

☐ **Obtain Order Determining Succession** OPTIONAL LOCKED

Receive court order determining property succession. Record order with county recorder.

☐ **Track Special Notice Requests** OPTIONAL LOCKED

Maintain list of all parties who have requested special notice. You must serve them copies of ALL court filings.

☐ **Serve All Special Notice Recipients** OPTIONAL LOCKED

Each time you file a document with the court, serve copies by mail on all parties who requested special notice.

☐ **Avoid Bond Cost** LOCKED

Obtain signatures from all heirs to waive the bond requirement, then file the completed waiver with the court.

☐ **Obtain Order Waiving Bond** OPTIONAL LOCKED

Verify that the court has officially waived the bond requirement, typically reflected in a separate Order or the Order for Probate.

☐ **Respond to Objections** OPTIONAL LOCKED

If someone files an objection to the petition or will, you must respond formally and prepare for contest hearing.

☐ **Attend Will Contest Hearing** OPTIONAL LOCKED

Appear in court for hearing on objection. Be prepared to present evidence supporting will validity.

☐ **Resolve Will Contest** OPTIONAL LOCKED

Obtain court ruling on objection. If will is upheld, proceed with probate. If invalidated, estate becomes intestate. Contested probate can extend the timeline by 6–24 months.

☐ **Identify All Trust Beneficiaries**

Review the trust to identify all current and remainder beneficiaries. Include contingent beneficiaries.

 Upload Beneficiary List

☐ **Send Statutory Notice to Beneficiaries**

State law typically requires formal notice to beneficiaries and heirs within a specific timeframe (e.g., 30–90 days).

 Upload Notice Letters

 Upload Certified Mail Receipts

☐ **Notify State Health Agencies**

The trustee must notify the state Department of Health or Medicaid recovery agency to allow for potential recovery claims.

☐ **Respond to Trust Copy Requests**

Beneficiaries have the right to request a copy of the trust. Respond within the timeframe specified by state law.

☐ **Flag Minor Beneficiaries**

Identify any beneficiaries under age 18. Distributions to minors require special handling.

☐ **Monitor Statutory Contest Period**

Wait for the statutory contest period to expire before making final distributions. Document any contests or concerns raised.



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Asset Discovery

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Spousal Property Order required

UPLOAD DOCUMENTS →



Creditor Claims

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Verify Creditor Notice Exemption

Surviving spouses may be exempt from standard creditor notice if they assume personal liability for decedent's debts.



State spousal exemption statute



FIDUCIARY RISK: Statutory Debt Priority

Assess creditor claims and potential debts under the statutory priority rules applicable in your jurisdiction (often including administration expenses and taxes before unsecured debts).



Publish Notice to Creditors (If Required) OPTIONAL

If required or strategically beneficial in your jurisdiction, publish a notice to creditors using the court-approved or locally accepted format. Publication rules, timing, and whether it affects creditor deadlines vary by state and county.



Upload Draft notice text (as applicable)



Upload Case/filing details (if applicable)

**Notify Known Creditors**

Notify known creditors as appropriate and document your outreach (e.g., banks, credit cards, medical providers). Requirements and best practices vary by jurisdiction.



Upload Creditor notice template (if used)



Upload Creditor contact list / notice log

**International Fiduciary: W-8BEN/W-8CE Assessment**

For non-resident executors or beneficiaries, determine U.S. tax withholding requirements and treaty eligibility.

**International Fiduciary: ITIN Acquisition Protocol**

Identify foreign beneficiaries without a SSN/ITIN. Coordinate acquisition of U.S. Individual Taxpayer Identification Numbers to avoid maximum backup withholding on distributions.

**Evaluate Estate Solvency**

Compare total estate assets to total liabilities, taxes, and administration/funeral expenses to determine whether the estate appears solvent or insolvent.

**Monitor State-Specific Creditor Exposure Period**

Monitor the creditor exposure timeline applicable in your jurisdiction. The trigger event and timing vary by state and case type. Avoid final distributions until creditor risk is appropriately managed (often by holding reserves and documenting claim handling).

**Publish Notice to Creditors (Optional but Recommended)**

OPTIONAL

Texas allows optional publication of notice to creditors. While not required, publication starts the 4-month claim period and provides protection against late claims.



Upload Notice to Creditors



Upload Publication Proof



TX Estates Code §355

**Mail Notice to Known Creditors (TX)**

Texas requires actual notice to known creditors. Mail notice by certified mail, return receipt requested, to trigger the 4-month claim period for each creditor.



Upload Certified Mail Receipts



Upload Creditor Notice Log

[TX Estates Code §355.002](#)

○ Check for Texas Medicaid Estate Recovery (MERP)

Texas Medicaid Estate Recovery Program (MERP) may have claims against the estate for benefits paid. Check MERP status before distributing assets or filing Muniment of Title.

[Upload MERP Notice Request](#)[Upload MERP Response](#)[Texas MERP Information](#)

○ Monitor Creditor Claim Period

In Texas, creditors generally have 4 months from the date of the published notice or receipt of personal notice to file claims.

○ Review Submitted Claims

Examine each creditor claim for validity, amount, and supporting documentation.

[Review Claims](#)

○ Document Claim Evaluation & Decision

Evaluate each creditor claim and document your decision (allowed, partially allowed, disputed/rejected) with supporting rationale and evidence. Claims handling procedures vary by state and case type.

○ Dispute or Reject Claims (If Applicable) LOCKED

If a claim is incorrect, unsupported, or disputed, follow your state's procedure to dispute, reject, or negotiate the claim. Keep written documentation of the basis and supporting evidence.

○ Pay Approved Claims (By Statutory Priority) LOCKED

Pay valid debts in the statutory priority order applicable in your jurisdiction (commonly including administration costs, taxes, secured debts, then unsecured claims). Document each payment and retain receipts.

○ Document Proof of Creditor Notice (If Applicable)

If your jurisdiction requires proof of creditor notice (publication and/or direct notice), retain and submit the required proof in the format your court or process expects. Even when not required

to file, maintaining proof supports a defensible administration record.

 Upload Notice log

 Upload Proof documents (if applicable)

☐ **Creditor Exposure Assessment**

Review known debts and potential claims against the trust estate. This is a silent legal check, not formal probate publication.

☐ **Pay Funeral & Last Illness Expenses**

These are typically the first obligations to pay from trust assets.

 Upload Funeral Invoice

 Upload Medical Bills

☐ **Pay Ongoing Property Expenses**

Maintain trust property by paying mortgage, property taxes, insurance, and utilities from trust accounts.

☐ **Evaluate Trust Solvency**

Compare total trust assets against all known and potential liabilities to determine solvency status.

☐ **Pay Valid Debts**

Pay legitimate debts from trust accounts according to trust terms and state priority rules.

 **UPLOAD MISCELLANEOUS**

☐ **Asset Liquidation**

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☐ **Obtain Court Approval for Minor Distributions**

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

**Present Letters to All Institutions**

Submit certified Letters of Authority to every bank, brokerage, and insurance company.

Death Certificate Obtained



Upload Letters of Authority

**Transfer Financial Accounts** LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.

**Complete Property Sale & Transfer**

If the estate owns real property and a sale is needed, confirm fiduciary authority and any required court authorization in your jurisdiction before signing a contract. Complete closing, deposit proceeds into the estate account, and retain all closing and tax documents.



Upload Closing statement (HUD-1/CD/ALTA)



Upload Deed or transfer instrument



Upload Tax/withholding documents (if any)

Finalize Sale

**File Form 1041 (Fiduciary Income Tax)**

Report income, deductions, and credits for a trust or estate that has gross income of \$600 or more in a tax year.

**Issue Schedule K-1 to Beneficiaries**

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

**Pay Final Taxes** Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.



Upload All Tax Documents

**Prepare Final Accounting** LOCKED

Document all income, expenses, and distributions for court review.

**File Decedent's Final Form 1040**

File the decedent's final individual income tax return for the year of death.

 Upload Form 1040

 Upload W-2s

 Upload 1099s



Determine Post-Death Tax Posture

A revocable trust becomes irrevocable at death. Determine whether it's now a grantor trust, complex trust, or simple trust for tax purposes.



Evaluate Estate Tax Return Requirement

Determine if Form 706 is required based on total estate value, including trust assets.

 Upload Form 706 (if required)



Obtain Tax Clearances

Confirm all taxes are paid before making final distributions to beneficiaries.



Prepare Trust Accounting

Create a comprehensive accounting of all receipts, disbursements, and distributions for beneficiaries.

 Upload Trust Accounting Statement

Action Plan

YOUR COMPLETE 6-PHASE GUIDE

0%

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Final Distribution

0/14



Complete liquidation first

VIEW ASSETS →



ExpectedEstate is not a law firm. We provide recordkeeping tools to help executors document fiduciary actions for attorney review. Use does not create an attorney-client relationship.